

Court No. - 2

Case :- WRIT - C No. - 2062 of 2025

Petitioner :- Smt. Vinita Verma

Respondent :- State Of U.P. Thru. Its Prin. Secy. Energy U.P.
Lko. And 3 Others

Counsel for Petitioner :- Prabhat Kumar,Rajendra Prasad
Verma

Counsel for Respondent :- C.S.C.,Aprajita Bansal

Hon'ble Rajan Roy,J.

Hon'ble Om Prakash Shukla,J.

1. Heard.

2. Learned counsel for electricity corporation says that if the petitioner applies online and also submits an indemnity bond then irrespective of the fact that there is a matrimonial discord between the petitioner her husband-opposite party no.4 and the electricity connection is in the name of opposite party no.4 who is owner of the premises, the application of the petitioner if she resides in the premises and there is no other legal impediment would be considered and appropriate decision shall be taken accordingly. She refers to Para no.4.4 of the Electricity Supply Code, 2005 and there are also judgments on the subject where tenants who are in possession can be granted electricity connection in the event landlord does not co-operate or there is a civil dispute pending in the courts subject of course to submission of indemnity bond by tenants. The same analogy will apply in the case of the petitioner also as stated by Sri Prabhat Kumar, learned counsel for the petitioner.

3. Let the petitioner do the needful at the earliest and if formalities aforesaid are completed by the petitioner then within three weeks from completion of such formalities, the application of the petitioner would be considered and decision shall be taken as per law. This is without prejudice to the rights, if any, of the private opposite party to the property in question.

4. Accordingly, the petition is **disposed of**.

(Om Prakash Shukla,J.) (Rajan Roy,J.)

Order Date :- 5.3.2025

Shanu/-